

Court No. - 3

Case :- WRIT - C No. - 22855 of 2022

Petitioner :- Daya Shanker Gupta

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sourabh Pathak

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard Sri Saurabh Pathak, learned counsel for the petitioner, learned Standing Counsel for the state-respondents and Mrs. Rishu Mishra, learned counsel for the respondent no. 3.

This writ petition has been filed praying for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari for quashing the impugned recovery certificate dated 09.09.201 issued by respondent no.3 for recovery a sum of Rs. 84,770/- from the petitioner (Annexure No.1 to the writ petition)

ii) Issue a writ order or direction in the nature of mandamus directing the respondents not to give effect the impugned recovery certificate order dated 09/09.2021 passed by respondent no.3 (Annexure No.1 to this writ petition)

Smt Rishu Mishra, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/her objection under ***Para 6.8 of U.P. Electricity Supply Code, 2005*** before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No, 3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 10.8.2022

T.S.